

SERVICE ORDER
DT FATCA/CRS Reporting Service

Date: 03/03/2025

Customer	
Name	Alivente Limited
Address	Alivente House, Dykaiosinis 13A-2412, Egkomi 2412, Cyprus
Contact Person Name	Demetris Manias
Contact	demetri.maniass@alivente.com

1. Description of Work

- Receive input FATCA or CRS files in formats including Microsoft Excel.
- Clear validation errors or warnings as per FATCA or CRS schema.
- Address validation errors or warnings specific to concerned regulator to ensure successful submission of FATCA or CRS reports.
- Address queries from regulator on validation or data completeness on submitted FATCA or CRS reports.
- Provide XML Output/package fit for submission with regulator. (SPAIN)

2. Pricing

Description	Report	Fee Per XML report (EUR)	Reporting
DT – CRS Reporting Service	CRS	500	Annual

- Prices mentioned above is inclusive of 9% GST
- Maximum business line items should not exceed more than 2,500 records

3. Invoicing and Payment

- Invoice will be raised immediately after the acceptance of the Service order.
- Payment to be received within 7 days from the invoice date.
- Payment should be made either by wire transfer or online credit card
- Price excludes cost of remittance, if any. Invoice will contain Bank details for wire transfer.

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4. Service level

- Service would be available 5 days a week (Monday through Friday), except EU public holidays, 8 hours a day during CET time hours (0900 hours to 1700 hours)

5. Turnaround time

- Standard: 3 business days from the date of finalizing reportable data

6. Other terms:

- a) DataTracks is responsible to Alivente Limited alone; not to regulator or to end client of Alivente Limited DataTracks' liability, in the event of a claim, is limited to the fees received by DataTracks for such work except if the claim is due to breach of any applicable laws which is attributable to DataTracks and not rectified or cured within 30 days.
- b) All output documents would be validated against regulator schema before filing.
- c) DataTracks is responsible to the Client alone; not to the regulator.
- d) This Service Order is subject to the jurisdiction of Singapore.
- e) By signing this Service Order, the Client agrees to standard terms of services of DataTracks as set out in <https://www.datatracks.com/sg/terms-of-use> and Privacy policy of DataTracks as enumerated in <https://www.datatracks.com/sg/privacy-policy>

Signature for **DataTracks Global Private Limited**

Name:

Position:

Date:

Signature for **Alivente Limited**

Name: DEMETRIO MANDAS

Position: EXECUTING DIRECTOR

Date: 2025/05/06

NON DISCLOSURE AGREEMENT

THIS NONDISCLOSURE AGREEMENT ("Agreement") is entered into this day of 3rd March 2025 (the "Effective Date") by and between Alivente Limited ("Customer", "Controller") having its Registered Office at Alivente House, Dykaioisinis 13A-2412, Egkomi 2412, Cyprus and DataTracks Global Private Limited ("DataTracks", "Processor"), having its Registered office at 17, Phillip Street, #05-01, Grand Building, Singapore 048695

Definitions

1. 'Processor' shall mean DataTracks Global Private Limited, having its Registered office at 17, Phillip Street, #05-01, Grand Building, Singapore 048695 and includes its Subsidiaries.
2. "Controller Data" shall have the definition ascribed in Article 4(7) of General Data Protection Regulation (EU) 2016/679 as effective 25 May 2018 and all data provided by a Controller to Processor including without limitation the name, address, electronic mail address and other Personal Data relating to the Controller's or any of its Group Companies' clients, contacts, members and/or employees.
3. "Personal Data" shall have the definition ascribed in the Data Protection Act 1988 of the UK and from 25 May 2018, the EU General Data Protection Regulation 2016/679 of the European Parliament and of the Council of 27 April 2016
4. "Data Subjects" would include members, employees, contractors, contacts, business associates and/or clients of the Controller and/or any employees of the Clients of the Controller, or any of their Group Companies

Background

Customer and DataTracks (collectively the "Parties" and each a "Party") have initiated discussions concerning the possibility of entering into a mutually advantageous business relationship. To facilitate the release of information between the Parties, the Parties desire to enter into this Agreement.

Agreement

For good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. "Confidential Information" shall mean any information, technical data, or know-how (including, but not limited to, information relating to products, software, services, developments, inventions, processes, research, engineering, customers, suppliers, pricing, business and marketing plans or strategies, finances, employees, consultants and business opportunities) disclosed by the disclosing party ("Disclosing Party") to the receiving party ("Receiving Party"), either directly or indirectly in any form whatsoever (including in writing, in machine readable or other tangible form, or orally or visually): (i) that has been marked as confidential; (ii) whose confidential nature has been

made known by Disclosing Party, orally or in writing, to Receiving Party; or (iii) that due to its character and nature, a reasonable person under like circumstances would consider to be confidential.

2. No Disclosure or Use of Confidential Information.

(a) Receiving Party shall keep in strictest confidence and trust all Confidential Information of Disclosing Party and shall not disclose any such Confidential Information to any other entity or person or use any such Confidential Information other than for the purpose of evaluating a possible business relationship with Disclosing Party, without the express written consent of Disclosing Party. Receiving Party shall take all reasonable safeguards to prevent disclosure of the Confidential Information. Receiving Party agrees to comply with all laws and regulations. Each of the Parties shall be responsible for the acts or omissions of its directors, officers, employees, agents or other representatives; to the extent such entities or persons have access to the Confidential Information.

(b) The obligations of Receiving Party as stated in the preceding paragraphs of this Section 2 shall not apply to information received pursuant to this Agreement which: (i) was rightfully known to Receiving Party at the time it was disclosed, as verified and evidenced by the written records of the receiving party at the time of disclosure; (ii) is at the time of disclosure or later becomes publicly known other than through a breach of confidentiality; (iii) is lawfully and in good faith made available to Receiving Party by a third party; (iv) is developed by Receiving Party independent of any disclosure by Disclosing Party, as verified and evidenced by the prior written records of Receiving Party; or (v) is disclosed by Receiving Party pursuant to a written permission from Disclosing Party. Notwithstanding the foregoing, Receiving Party may disclose the Disclosing Party's Confidential Information to the extent required by a valid order by a court or other governmental body or by applicable law; provided, however, that Receiving Party will use all reasonable efforts to notify Disclosing Party of the obligation to make such disclosure in advance of the disclosure so that Disclosing Party will have a reasonable opportunity to object to such disclosure.

3. Term of Agreement. Unless expressly terminated by agreement in writing between the Parties hereto, the term of this Agreement shall continue and bind the Parties hereto for a period of three years, except that the nondisclosure obligations and restrictions on use with respect to any Confidential Information that constitutes a trade secret shall continue in effect for so long as the Confidential Information remains a trade secret under applicable law.

4. Use and Return of Confidential Information. All Confidential Information shall remain the sole and exclusive property of Disclosing Party, including all intellectual property rights therein. Receiving Party shall not remove any proprietary, copyright, trade secret or other legend from the Confidential Information. To the extent the Confidential Information consists of software, Receiving Party shall not reverse engineer, decompile, or disassemble the software for any purpose without Disclosing Party's prior express written consent, nor shall Receiving Party attempt to create the source code from the object code for the software or defeat any software key used to activate the software. Receiving Party shall return the Confidential Information and all copies, transcriptions or other reproductions of, and any notes relating to, the Confidential Information to Disclosing Party upon either (i) the accomplishment of the purpose for which the Confidential Information was provided, (ii) termination of the business relationship between the parties or (iii) receipt of a written

notice from Disclosing Party requesting return of the Confidential Information.

5. Cooperation and Enforcement. Receiving Party shall (i) notify Disclosing Party immediately of any unauthorized possession, use or knowledge of the Confidential Information, (ii) promptly furnish Disclosing Party full details of such possession, use or knowledge, and (iii) cooperate with Disclosing Party in any litigation against third parties as may be deemed necessary by Disclosing Party to protect its proprietary rights in the Confidential Information.
6. No License or Other Rights. Nothing in this Agreement is intended to or shall grant to Receiving Party any license or other right of any nature to the use of any of the Confidential Information or any intellectual property rights relating to the Confidential Information, except for the limited purpose of evaluating a possible business relationship with Disclosing Party.
7. Accuracy and Completeness of Confidential Information. Disclosing Party shall not be deemed to have made any representation or warranty, express or implied, to Receiving Party concerning the accuracy or completeness of any Confidential Information, except to the extent that such representation or warranty may be expressly set forth in a definitive agreement concerning any subsequent business relationship.
8. Data Privacy: In any use of Controller Data relating to individuals residing in the European Economic Area or Switzerland, Processor represents and warrants that it will comply with the EU-US Privacy Shield Principles, EEA and Swiss data protection and anti-spam electronic privacy laws, including Directive 95/46/EC (the Data Protection Directive), Directive 2002/58/EC (the ePrivacy Directive) and Regulation 2016/679 as effective 25 May 2018 (the General Data Protection Regulation) (collectively, "European Data Privacy Law")

Processor represents and warrants that with regard to Controller Data, subject to European Data Privacy Law and provided to or received from Controller, (i) it will comply with European Data Privacy Law with respect to use, storage, transfer and other processing of such Personal Data, (ii) it will process such Personal Data only for the purposes specified in this Agreement, including only transfer or disclose the Personal Data to a third party for the Processor's internal business purposes, (iii) it shall maintain appropriate technical and organizational measures to protect against unauthorized or unlawful processing of the Controller Data and against accidental loss or destruction of, or damage to, the Controller Data (iv) its employees, contractors or any person dealing with Controller Data will process the Controller Data per the instructions from Controller.

Processor represents and warrants that Controller Data shall not be transferred to any country outside the EEA without the prior written permission of Controller. Controller hereby acknowledges that support is provided by the Processor from outside of the EEA and thus, gives approval to the Processor to transfer Controller Data outside EEA for the processing of data where required. Processor acknowledges that it imposes the same confidentiality obligations on the companies outside the EEA who process Controller Data, as those which are imposed on it under this Agreement.

Processor uses the services of Rackspace, IBM Softlayer, Amazon Web Services and similar Cloud hosting companies to store Controller's Personal data and Controller acknowledges and approves this storage. These companies provide service to the Processor under extremely strict confidentiality agreements and do not have any independent right to share Controller's Personal Data. Processor represents and warrants that Personal Data collected from Controller will not be

disclosed without Controller's consent. Exception to this is when such disclosure is necessary for compliance to any legal and/or law enforcement obligations. Processor warrants that it will do so after following necessary due processes and make every effort, where possible, that such mandated disclosures are communicated to the Controller.

Controller can contact the Processor to get access to its Personal Data along with information regarding its purpose, disclosure, categories of Personal Data, storage period, source of collection of Personal Data, and confirmation whether or not they are being processed. Controller can withdraw its consent at any point in time by reaching out to the Processor. Consequences of withdrawal will be communicated to the Controller. On agreement, Controller's request for withdrawal will be processed, including request for deletion or erasing of data.

Controller can rectify its details anytime by accessing the account on Processor's software and editing the details. Controller can also call support contact number available on Processor's website or mail to cfo@datatracks.com to get the information corrected. If Processor determines that it can no longer meet the level of protection required by European Data Privacy Law, it will inform the Controller, cease to provide the Services or take appropriate steps to re-establish the requisite level of protection. Processor hereby warrants that it shall provide Controller with all reasonable assistance in its response to the application of Data Subject rights requests. This shall include but not be limited to, extraction, deletion and amendment of Data where Controller does not have such IT permissions within the solution / data center as would enable those requests to be completed in compliance with GDPR. Processor shall provide support to Controller as requested in a timely manner and have completed undertaking the requirement(s) in no more than ten calendar days post receipt of a written request to Processor's nominated contact, from Controller.

9. Remedies. Receiving Party acknowledges and agrees that Disclosing Party would be irreparably harmed if any of the Confidential Information were to be disclosed to a third party, or if any use were to be made of the Confidential Information other than that specified in this Agreement. Each of the Parties further agrees that the injured Party shall have the right to seek and obtain injunctive relief upon any violation or threatened violation of the terms of this Agreement, in addition to all other rights and remedies available to the injured Party at law or in equity without any posting of a bond.
10. Entire Agreement; Amendments. This Agreement contains the entire agreement among the Parties hereto with respect to the matters set forth herein. No amendment or waiver of any term of this Agreement shall be effective unless such amendment or waiver is in writing and is signed by the Party to be charged therewith.
11. Assignment. Neither Party may assign or delegate this Agreement, or any rights, duties or obligations hereunder, without the prior written approval the other. Notwithstanding the foregoing, either Party may assign this Agreement in connection with a merger, consolidation, or sale of all or substantially all of such Party's assets, equity interests or any other business combination involving such Party and another entity.
12. Conflict. In the event of a conflict between the terms of this Agreement and any other agreements between the Parties hereto, including, but not limited to, the Terms of Use and Privacy Policy governing the use of DataTracks' website, the terms of this Agreement shall govern. In the event of any conflict between the English and other language versions, the English version shall prevail

13. Applicable Law. This Agreement shall be governed by and construed in accordance with the laws of Singapore and the parties consent to the exclusive jurisdiction and venue of the courts located in Singapore.

This Agreement has been executed as of the date first set forth above.

Alivente Limited

By: 
Name: DEMETRIOS MANDAS
Title: EXECUTIVE DIRECTOR
Date: 2025/05/06

DataTracks Global Private Limited

By: _____
Name: _____
Title: _____
Date: _____